



U.S. Department
of Transportation

Research and
Special Programs
Administration

APR 23 1998

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11730
(SIXTH REVISION)

EXPIRATION DATE: December 31, 1998

(FOR RENEWAL, SEE 49 CFR SECTION 107.109)

1. GRANTEE: USMX Inc.,
Lakewood, CO
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of certain hazardous materials by cargo aircraft only when aircraft is the only means of reaching the destination. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 175.320(a) in that Divisions 5.1, 6.1, and Class 8 materials are not authorized in this section.
5. BASIS: This exemption is based on the application of USMX, Incorporated dated August 1, 1996, and a subsequent letter with additional information dated January 22, 1997, February 10, 1997 and April 22, 1998, submitted in accordance with 49 CFR 107.109 and 107.121.
6. HAZARDOUS MATERIALS (49 CFR 175.320(a)):

Material/UN Number	Class/ Division	Packaging Authorized/ Quantity
Sodium cyanide/UN1689	6.1	11D/1000 kg
Sodium hydroxide/UN1823	8	1A2/230 kg
Hydrochloric acid (31%)/UN1789	8	1H1/230 kg
Nitric acid (40%)/UN2031	8	1H1/230 kg
Calcium hypochlorite/UN1748	5.1	1H2/46 kg
Ammonium nitrate/UN1942	5.1	13H1/1814 kg
Hydrogen peroxide (liquid, 50% concentrate)	5.1	1H1/230 kg

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7. PACKAGING AND SAFETY CONTROL MEASURES: OPERATIONAL CONTROL - Sodium cyanide may not be transported in the same aircraft with other hazardous materials.

8. SPECIAL PROVISIONS:

- a. This exemption may only be used for transportation by cargo aircraft from Palmer Airport, Palmer, Alaska; Galena Airport, Galena, Alaska; Nenana Airport, Nenana, Alaska; Nome Airport, Nome Alaska; Fairbanks International Airport, Fairbanks, Alaska; and from Anchorage International Airport, Anchorage, Alaska, to a private airstrip located at the Illinois Creek Mine. The distance among the 3 airports and the airstrip is 320, 57, and 320 air miles, respectively.
- b. Non-hazardous materials may be transported on the same aircraft with hazardous materials.
- c. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

9. MODES OF TRANSPORTATION AUTHORIZED: Cargo only aircraft.

10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard each aircraft used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in 49 CFR 171.8 who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by 49 CFR 172.700 through 172.704.

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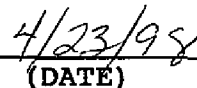
No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety


(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FAA